

ANNEX 2.

I.—DOCUMENTS TRANSMITTED BY THE SECRETARIAT OF THE LEAGUE OF NATIONS :

1. Report by the representative of the United Kingdom, adopted by the Council of the L. N. on September 23rd, 1935 (*in French and English*). (Doc. C. 373. 1935. VII.)
2. Petition from the German National, Social-Democrat and Centre Parties, concerning the legislative decree of August 29th, 1935, amending certain provisions of the Penal Code in force (*in French and English*). (Doc. C. 355. 1935. VII.)
3. Original copies in German of documents reproduced or referred to in Document C. 355. 1935. VII :
 - (a) Petition of the German National, Social-Democrat and Centre Parties (Sept. 4th, 1935).
 - (b) Observations of the Senate of Danzig (Sept. 7th, 1935).
 - (c) *Gesetzblatt für die Freie Stadt Danzig—Ausgabe A.*, No. 91 of August 31st, 1935, containing the decrees complained of by the petitioners.
 - (d) *Gesetzblatt für die Freie Stadt Danzig—Ausgabe B.*, No. 33 of June 26th, 1933, containing the text of the law of June 24th, 1933, for the relief of the distress of the population and the State.
 - (e) *Deutsche Justiz, Rechtspflege und Rechtspolitik*, of July 12th, 1935. Articles entitled : „Die leitenden Gedanken der beiden Gesetze zur Änderung des Strafgesetzbuches sowie zur Änderung des Strafverfahrens und des Gerichtsverfassungsgesetzes vom 28. Juni 1935“, and : „Die Einzelheiten der Strafgesetznovelle vom 28. Juni 1935.“
 - (f) *Deutsche Justiz, Rechtspflege und Rechtspolitik*, of August 30th, 1935. Article entitled : „Der Gedanke der Gerechtigkeit in der deutschen Strafrechtserneuerung.“
4. Minutes of the meeting of the Council of the L. N. on September 23rd, 1935 (aft.), with the report of a Committee of three jurists referred to therein.
5. Letter from the High Commissioner of the L. N. at Danzig to the Senate of the Free City, transmitting the petitions of certain political parties (Sept. 5th, 1935).

II.—DOCUMENTS TRANSMITTED ON BEHALF OF THE FREE CITY OF DANZIG :

1. Proceedings of preparatory work previous to the approval of the Constitution of Danzig by the Council of the L. N. :
 - (1) Minutes of the sub-committee appointed by the preparatory Commission for the drafting of the Constitution.
 - (2) Minutes of the Commission on the Constitution of the Constituent Assembly.
 - (3) Verbatim records of the Constituent Assembly and of the *Volkstag*.
2. *Urteil des Danziger Obergerichts, I. Zivilsenat*, 14. November 1935.
3. *Zusammenstellung der im Plaidoyer nicht wörtlich zitierten Entscheidungen und Gesetzesstellen*.
4. „Höhere Gerechtigkeit, Gnade und Naturrecht“, von *Rechtsanwalt Prof. Dr. Grimm, Essen-Münster*.

5. „Rechtsgutachten über die Verfassungsmässigkeit des von Volkstag und Senat der Freien Stadt Danzig in der Form eines einfachen Gesetzes beschlossenen und verkündeten Gesetzes zur Behebung der Not von Volk und Staat, vom 24. Juni 1933 (*Gesetzblatt für die Freie Stadt Danzig*, 1933, S. 273)“, von Staatsrat Prof. Dr. Carl Schmitt, Berlin. (Cf. *Official Journal* of the L. N., XVth Year, No. 6, p. 775.)

III.—DOCUMENTS ASSEMBLED BY THE REGISTRY :

1. Constitution of Danzig (extract No. 58 of the Official Journal, Dec. 1930).
2. Articles 2 and 2 a of the Danzig Penal Code in force prior to September 1st, 1935.
3. Danzig Enabling Laws previous to that of June 24th, 1933, i.e. of :
 October 20th, 1923 (*Danz. Gesetzblatt*, p. 1067).
 November 29th, 1926 (*id.*, p. 317).
 January 23rd, 1931 (*id.*, p. 7).
 June 30th, 1931 (*id.*, p. 605).
 September 1st, 1931 (*id.*, p. 719).
 June 28th, 1932 (*id.*, p. 403).
 June 24th, 1933 (*id.*, p. 273).
4. Passage from the judgment given on November 7th, 1934, by the Danzig Supreme Court, quoted in the judgment given by that Court on November 14th, 1935.
5. Passage from the judgment given on April 28th, 1932, by the Danzig Supreme Court, quoted in the judgment given by that Court on November 7th, 1934.